

25CHCV02316 25CHCV02316

County: los-angeles

Division: Civil Law and Motion

Department: F47

Hearing date: 2026-07-14

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Case Number: 25CHCV02316 Hearing Date: July 14, 2026 Dept: F47

Dept. F47

Date: 7/14/26

Case #25CHCV02316

MOTION FOR

LEAVE TO FILE A CROSS-COMPLAINT

Motion filed on 6/15/26.

MOVING PARTY: Defendants PPG Industries, Inc. and Sierracin/Sylmar Corporation

RESPONDING PARTY: all other parties

NOTICE: ok

RELIEF REQUESTED: An order granting Defendants PPG Industries, Inc. and Sierracin/Sylmar Corporation leave to file a cross-complaint.

RULING: The motion is granted.

SUMMARY OF FACTS & PROCEDURAL HISTORY

This action arises out of injuries sustained by Plaintiff

Gustavo A. Castro Arana (Plaintiff) on 7/11/23 at or near 12780 San Fernando

Road, Sylmar, California 91342 (the Premises).

(Complaint ¶8). Plaintiff was

injured while from an explosion of polytetramethylene ether glycol (PTMEG) from a hose that became disconnected, dislodged, burst, and/or loose while not properly cleared of PTMEG and this caused Plaintiff to become covered in PTMEG (the Incident). Id. While covered in the PTMEG at the Premises, there was not an emergency shower or other proper facility or procedure in place to clean the PTMEG off Plaintiff or otherwise render aid to him. (Id. ¶9). As a result, Plaintiff suffered serious personal injuries, including but not limited to chemical burns all over his body. Id.

At the time of the Incident, the Premises were owned, leased, occupied, managed, supervised, and/or controlled by Defendants PPG Industries, Inc. (PPG), Eugene Nasch, individually and as Trustee of the Nasch Family Trust dated July 19, 1991 (Mr. Nasch), Sierracin/Sylmar Corporation (Sierra Sylmar) (collectively, the Premises Defendants), and/or DOES 1 to 100. (Complaint ¶11). Plaintiff had been hired by Defendant Ventura Transfer Company (Ventura Transfer) and DOES 1 to 10 (the Ventura Defendants) to pick up and transport the PTMEG to the Premises and then participate in its transfer. (Id. ¶12). Plaintiff alleges that prior to the Incident, the Ventura Defendants did not provide Plaintiff with proper training, instruction, warning in connection with the aforementioned and Ventura Transfer also failed to provide proper personal protective equipment (PPE) to Plaintiff. (Id. ¶12).

Plaintiff further alleges that the Premises Defendants undertook the duty of informing Plaintiff as to when it was safe and appropriate for the hose to be disconnected in connection with the Incident and the Premises Defendants negligently and unreasonably made affirmative misrepresentations that the hose was safe for disconnection when it was not. (Complaint ¶13). As a result, Plaintiff was injured from an explosion of PTMEG from a hose that became disconnected, dislodged, burst, and/or loose while not properly cleared of PTMEG and this caused Plaintiff to become covered in PTMEG. Id.

On 7/2/25, Plaintiff filed this action against Ventura Transfer and the Premises Defendants for: (1) General Negligence (against all Defendants), (2) Premises Liability (against the Premises Defendants), (3) Negligent Undertaking (against all Defendants) and (4) Direct Civil Action for California Labor Code Section 3706, et seq. (against Ventura Transfer). On 11/20/25, PPG and Sierra Sylmar filed a joint answer to the complaint. On

3/11/26, Ventura Transfer answered the complaint and filed a cross-complaint against Plaintiff. On 4/23/26, Ventura Transfer filed a First Amended Cross-Complaint against Plaintiff. On 5/26/26, Plaintiff answered Ventura Transfer's cross-complaint.

On 6/15/26, PPG and Sierria Sylmar filed and served the instant motion seeking an order granting Defendants PPG Industries, Inc. and Sierracin/Sylmar Corporation leave to file a cross-complaint. The motion is unopposed.

ANALYSIS

CCP 428.10 provides:

"A party against whom a cause of action has been asserted in a complaint or cross-complaint may file a cross-complaint setting forth either or both of the following:

(a) Any cause of action he has against any of the parties who filed the complaint or cross-complaint against him. Nothing in this subdivision authorizes the filing of a cross-complaint against the plaintiff in an action commenced under Title 7 (commencing with Section 1230.010) of Part 3.

(b) Any cause of action he has against a person alleged to be liable thereon, whether or not such person is already a party to the action, if the cause of action asserted in his cross-complaint (1) arises out of the same transaction, occurrence, or series of transactions or occurrences as the cause brought against him or (2) asserts a claim, right, or interest in the property or controversy which is the subject of the cause brought against him."

CCP 428.50 provides:

"(a) A party shall file a cross-complaint against any of the parties who filed the complaint or cross-complaint against him or her before or at the same time as the answer to the complaint or cross-complaint.

(b) Any other cross-complaint may be filed at any time before the court has set a date

for trial.

(c) A

party shall obtain leave of court to file any cross-complaint except one filed within the time specified in subdivision (a) or (b). Leave may be granted in the interest of justice at any time during the course of the action."

Here, PPG and Sierra Sylmar seek to file a cross-complaint against Ventura Transfer; Gantrade Corporation and Roes 1-50 for: (1) Express Indemnity; (2) Equitable Indemnity; (3) Contribution; (4) Apportionment of Fault and (5) Declaratory Relief. The proposed cross-complaint arises out of the same transaction or occurrence as Plaintiff's complaint. CCP 428.10(b). It is in the interests of justice to allow PPG and Sierra Sylmar to bring their cross-claims in this action.

CONCLUSION

The motion is granted. PPG and Sierra Sylmar are ordered to separately file their cross-complaint which is attached to the Stern declaration as Exhibit A.

In violation of CRC 3.1110(a), counsel for PPG and Sierra Sylmar failed to electronically bookmark the exhibit attached to the motion. Counsel for the parties are warned that failure to comply with this rule in the future may result in matters being continued so that papers can be resubmitted in compliance with the rule, papers not being considered and/or the imposition of sanctions.